

STATE OF NEW YORK

6903--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. BRONSON, R. CARROLL, HEVESI, RAGA, COLTON -- read once and referred to the Committee on Libraries and Education Technology -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law and the education law, in relation to requiring public and not-for-profit libraries develop and implement programs to protect library employees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The labor law is amended by adding a new section 27-f to
2 read as follows:

3 § 27-f. Duty of libraries to implement programs to prevent workplace
4 violence. 1. Definitions. For the purposes of this section:

5 (a) "Library" shall mean any public, association, or free library, as
6 defined by section two hundred fifty-three of the education law, or
7 library having tax exempt status under section 501 (c) (3) of the United
8 States Internal Revenue Code, located in the city of New York or the
9 state of New York.

10 (b) "Library employee" means an individual who is employed by a
11 library.

12 (c) "Workplace" means any location away from a library employee's
13 domicile, permanent or temporary, where a library employee performs any
14 work-related duty in the course of such employee's employment by a
15 library.

16 (d) "Community violence interrupter" means individuals considered
17 credible messengers within a given community employed by a library,
18 whose main job function is focused on intervening before crises or
19 violence erupt and/or escalate, and who connect high-risk individuals to
20 extensive networks that provide job training, employment opportunities,
21 mental health services and/or legal services to increase the likelihood
22 of long-term violence reduction. Community violence interrupters are

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD07317-02-5

1 expected to mediate active or unfolding conflicts between community
2 members for the purpose of preventing or mitigating the occurrence
3 and/or escalation of violence.

4 2. Risk evaluation and determination. Every library shall evaluate its
5 workplace or workplaces to determine the presence of factors or situ-
6 ations in such workplace or workplaces that might place library employ-
7 ees at risk of workplace violence, consistent with section twenty-sev-
8 en-b of this article and section two hundred of this chapter. Such
9 factors shall include, but not be limited to:

10 (a) working late night or early morning hours;

11 (b) working alone or in small numbers;

12 (c) uncontrolled access to the workplace; and

13 (d) areas of previous security problems.

14 3. Written workplace violence prevention policy. (a) Every library,
15 regardless of site or type, shall develop and implement a written work-
16 place violence prevention policy for its workplace or workplaces that
17 includes the following:

18 (i) a list of the risk factors, such as those identified in subdivi-
19 sion two of this section, that are present in such workplace or work-
20 places;

21 (ii) the methods the library will use to prevent incidents of work-
22 place violence at such workplace or workplaces, including but not limit-
23 ed to the following:

24 (1) making high-risk areas more visible to more people;

25 (2) installing good external lighting;

26 (3) providing employee training; and

27 (4) establishing and implementing reporting systems for incidents of
28 workplace violence.

29 (b) Every library shall make the written workplace violence prevention
30 policy available upon request to its library employees, such library
31 employees' designated representatives, and the department. Library
32 employees shall be provided a written copy of the workplace violence
33 prevention policy upon hire. Such written policy shall be available in
34 English, Spanish and any other language requested by a library employee
35 within thirty days of such request.

36 4. Library employee information and training. The department, in
37 consultation with relevant groups as deemed necessary, shall produce a
38 model workplace violence prevention training program. Every library
39 shall utilize the model workplace violence prevention training program
40 pursuant to this subdivision or establish a workplace violence
41 prevention training program that equals or exceeds the minimum standards
42 provided by such model training program. The department's model training
43 program shall include, but not be limited to:

44 (a) information on the requirements of this section;

45 (b) examples of measures library employees can use to protect them-
46 selves when faced with workplace violence from customers or other
47 coworkers;

48 (c) de-escalation tactics;

49 (d) active shooter drills;

50 (e) emergency procedures;

51 (f) instruction on the use of security alarms, panic buttons, and
52 other related emergency devices;

53 (g) training for people in mental health crisis; and

54 (h) trauma and grief counseling support for employees.

55 5. Conduct of trainings. All training shall be conducted in English
56 as well as the primary languages spoken by library employees in the

workplace. Every library shall provide its library employees with such workplace violence prevention training at the time of hiring and annually thereafter. When providing such workplace violence prevention training, each library shall also inform their library employees of the details and location of the written workplace violence prevention policy developed pursuant to this section. Each library shall include the risk factors specific to such employer's workplace or workplaces, measures library employees can take to protect themselves from such risks identified in such written workplace violence prevention policy, and any procedures the library has implemented to protect library employees.

6. Documentation of workplace violence incidents. Every library shall document each incident of workplace violence and shall maintain a copy of such documentation for a minimum of three years after each incident. Every library shall provide documentation of such incidents to the department upon request and shall remove any personally identifying information from such documentation before delivering it to the department.

7. Annual review. Every library shall review the number and scope of workplace violence incidents annually and shall make any necessary changes to the written workplace violence prevention policy as prescribed by subdivision three of this section.

8. Panic buttons. Every library shall install panic buttons at easily accessible locations throughout the workplace or workplaces. For the purposes of this section, "panic button" shall mean a physical button that when pressed immediately dispatches local law enforcement to the workplace. Libraries that identify a better or more immediate option that provides the same protection may obtain permission from the department to implement such alternate measure or measures.

9. Security guards and community violence interrupters. Libraries that have experienced a certain number of violent incidents in their workplace or workplaces in a given period of time, as determined by the department, shall be required to have a security guard or community violence interrupter present at the impacted location of such library during all hours in which such library is open.

10. The provisions of this section shall not diminish any other obligation of a library otherwise provided under law, rule, or regulation, or under a collective bargaining agreement.

11. Within one hundred eighty days of the effective date of this section, the commissioner shall adopt rules and regulations necessary to implement the provisions of this section.

§ 2. Section 305 of the education law is amended by adding a new subdivision 63 to read as follows:

63. The commissioner shall promulgate rules and regulations for the protection and general well-being of library employees in public libraries established under part two of article five of this title and not-for-profit libraries having tax exempt status under section 501 (c) (3) of the United States internal revenue code, consistent with the provisions of section twenty-seven-f of the labor law.

§ 3. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.